

Court No. - 3

Case :- WRIT - C No. - 8166 of 2024

Petitioner :- Shakir Ali

Respondent :- State Of U.P. Thru. Addl. Chief Secy. Deptt. Of Energy Lko. And 2 Others

Counsel for Petitioner :- Sandeep Kumar Ojha, Dilip Kumar Verma

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Subhash Vidyarthi, J.

1. Heard the learned counsel for the petitioner, Ms. Aprajita Bansal, who appears on behalf of the respondent no.2 and learned Standing Counsel, who appears on behalf of the State respondents no. 1 and 3.

2. This petition has been filed with the following prayers:-

"(i) Issue a writ, order or direction in the nature of Certiorari to quash the impugned R.C. Praptra -36 dated 28.06.2024 issued by the opposite party no.3 for recovery of Rs.1,54,809/- contained as Annexure No.1 to this writ petition.

(ii) Issue a writ, order or direction in the nature of Mandamus commanding the opposite parties not to take coercive action against the petitioner in pursuant to the impugned R.C. Praptra - 36 dated 28.06.2024 issued by the opposite party no.3."

3. It is the case of the petitioner that his father Sajjad Ali was running a business from a shop for which he had taken an electricity connection of commercial nature of 0.5 KW. The petitioner stopped his business in the year 2019 itself and made payment of the last Bill of Rs.22,497/- on 13.02.2019. His application for disconnection was entertained and meter was also removed from the premises. The opposite party no.2 also issued a permanent disconnection certificate to the petitioner.

However, certain outstanding dues were shown of Rs.9,400/- which were deposited by the petitioner on 30.04.2019. After more than five years of disconnection of electricity, the recovery certificate has been issued on the basis of which the recovery citation has been issued to the petitioner showing electricity dues of Rs1,54,809/-. The petitioner has already moved a representation to the opposite party no.2 praying for recall the recovery certificate issued by him. Since, no heed has been paid, the petitioner has been forced to approach this Court in this writ petition with aforesaid prayers.

4. Ms. Aprajita Bansal, the learned counsel for the respondent no.2 has produced before this Court certain documents sent by the opposite party no.2 shown that notice under Section 3 of the Electricity Act regarding pending dues was initially issued to the petitioner on 16.01.2020 and then again on 28.07.2020. In both these letters/notices dues of Rs.1,54,749/- have been shown. Also on 22.02.2020 one notice was again issued in the same date along with the copy of the electricity bill as generated on 8.04.2019.

5. These documents have kept on record, it is evident that the petitioner has a billing dispute which can be resolved by the opposite party no.2 under Paragraph 6.5 of the electricity supply code.

6. This petition is disposed of with liberty to the petitioner to approach the opposite party no.2 under the para 6.5 of the electricity supply code.

(Subhash Vidyarthi,J.) (Sangeeta Chandra,J.)

Order Date :- 21.9.2024
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